

51	Arashfar v. Trieu 30-2026-01544986	Hearing on motion to transfer case off-calendar per 5/13/2026 Order.
52	Flores-Garcia v. Nissan North America, Inc. 30-2024-01435508	Defendant Nissan North America, Inc.'s motion to compel Plaintiff Jorge I. Flores-Garcia to provide further deposition testimony and to produce additional documents, is granted in part and denied in part. The motion is granted as to further deposition testimony and denied as to production of documents. Code of Civil Procedure section 2025.480, subdivision (a) states: "If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production." A deponent who has objected to a question and refused to answer bears the burden of justifying such refusal on the motion to compel. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 8:814; see <i>San Diego Professional Assn. v. Superior Court of San Diego County</i> (1962) 58 Cal.2d 194, 199 ["The burden of establishing that a particular matter is privileged is on the party asserting that privilege."].) Contrary to Plaintiff's assertion, the motion does not ask for an open-ended further deposition. Instead, Defendant only seeks "deposition testimony related to questions in which testimony was withheld." (Not., at p. 1:24-26.) At the deposition, Plaintiff's attorney instructed Plaintiff not to answer the following questions: 1) What is this document? (Do Decl., Exh. B, at p. 17:13.) 2) When was the first time that you saw this document? (Do Decl., Exh. B, at p. 18:9-10.) 3) Did you write this letter? (Do Decl., Exh. B, at p. 18:17.) 4) Have you seen this document before? (Do Decl., Exh. B, at p. 33:18.) 5) Do you see that? (Do Decl., Exh. B, at p. 34:8-9.) (See also, Sep. Stmt.) Plaintiff's counsel objected to these questions on the basis of attorney-client privilege. Plaintiff's counsel also objected to the first question on the ground that the document speaks for itself. (Do Decl., Exh. B, at pp. 17-18, 33-34.) Plaintiff did not justify his objections to these questions. Specifically, Plaintiff has not shown that any of these questions were seeking responses that would be covered by

		the attorney-client privilege. In his opposition, Plaintiff also opposes the motion as to the third question on the ground of attorney work product. However, Plaintiff did not object on this ground during the deposition and has waived that objection. (See Do Decl., Exh. B, at p. 18; Code Civ. Proc., § 2025.460, subd. (b); <i>Boler v. Superior Court</i> (1987) 201 Cal.App.3d 467, 472, fn. 1 [an “objection to a deposition question must state the specific ground, and unstated grounds are waived”].) Even if the objection had not been waived, Plaintiff did not show how the letter, signed by Plaintiff and sent to Defendant, would be protected by attorney work product. Defendant’s motion to compel further deposition is granted. Within 14 days of the notice of ruling, Plaintiff is ordered to appear for a further deposition to answer these five questions and any follow-up questions related to these five questions, unless Defendant agrees to a later date. As for the documents, Defendant did not identify which document request was at issue. Defendant also failed to include any document request in the separate statement. Accordingly, the motion to compel production of documents at the ordered further deposition is denied. Finally, the court notes that trial is scheduled to commence on June 1, 2026. Counsel should be prepared to address whether they are requesting a brief continuance of trial. The court does not contemplate continuing any pretrial-related dates, except for Plaintiff’s further deposition. The parties, however, may stipulate to a continuance of pretrial-related dates. Defendant shall give notice of the ruling.
53	Garcia v. The City of La Habra 30-2025-01526721	Case management conference and hearing on demurrer vacated per 5/11/2026 Order.
54	Gath v. City of Mission Viejo 30-2024-01376969	Hearing on motions to compel responses to requests for admissions off-calendar. Notices of withdrawal of motions filed 5/5/2026.
55	Groat v. Walsh, et al. 30-2025-01526286	Defendants Eric Walsh and Walshmo Racing LLC’s demurrer to Plaintiff Nicholas Groat’s First Amended Complaint (“FAC”) is sustained in part and overruled in part. The demurrer as to the third cause of action is sustained with 15 days leave to amend. The demurrer as to the fourth and fifth causes of action is overruled. <u>Breach of Implied Covenant of Good Faith and Fair Dealing (Third Cause of Action)</u>